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Provision of August 31, 2023
Register of provisions
n. 391 of August 31, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree No. 196 of June 30, 2003, as amended by Legislative Decree No. 101 of August 10, 2018, hereinafter "Code");

HAVING REGARD TO the complaint pursuant to Article 77 of the Regulation submitted to the Guarantor on June 13, 2022, by Ms. XX, who reported a violation of the rules on the protection of personal data – and in particular the provisions for the protection of minors – in relation to the publication by the newspaper "La Stampa" of a photograph accompanying an article dated June 6, 2022 (titled "The gathering on Lake Garda with the cry 'Africa commands'. Hunt for the group accused of sexual harassment, the victims 'we would recognize them'") that reported the news of the harassment suffered on the train by some girls, including her daughter, during the return trip from Gardaland; a trip during which they encountered a group of boys who had participated in a gathering in the area, which degenerated into brawls and acts of violence;

CONSIDERING that the complainant specifically represented that:

- the photograph depicted the protagonists of the incident, including her daughter, "grossly pixelated over the eyes, making her and the other girls recognizable within their circle of acquaintances and family, thus further aggravating the discomfort already caused to them by the experience they lived"; the image was provided to the author of the aforementioned article by a journalist from another publication, XX, who took the shots while the minors were in the waiting room of the railway police, without any authorization from the parents, in violation of Article 7 of the Ethical Rules;
- the title of the aforementioned article contained a statement regarding the possible recognition of the authors of the harassment by the minors, which, in addition to being false (as it was not documented in any report), was likely to endanger the safety of the girls "who had the courage and civic sense to report the violence";

CONSIDERING that the complainant raised similar grievances against another publication, which was also the subject of a separate complaint, and therefore, regarding this latter, it was deemed appropriate to proceed with a separate provision;

CONSIDERING also that, due to the nature of the processing, the complaint submitted by Ms. XX is examined also as a report concerning the other minors depicted in the photograph attached to the complaint;

HAVING REGARD TO the communication of July 6, 2022, in which GEDI News Network S.p.a. - Publisher and data controller of the matter in question - provided a response to the request for information made by this Office on June 28, 2022 (protocol note 35142), specifying that:

- the published photo "had been correctly blurred in the area of the faces of the subjects represented, in order not to make the identities of the girls recognizable, as confirmed in the provision of the Discipline Board of the Order of Journalists of Lazio" dated June 21, 2022, which ruled on the case following the report by Ms. XX;
- in any case, the photograph has been removed from the article and from platforms attributable to the

Company, and measures have been taken to disable access to the article via search engines;

HAVING REGARD TO the resolution of June 21, 2022, attached by the Company, in which the Territorial Discipline Council of the Order of Journalists of Lazio decided to archive the complaint filed by the complainant against the responsible editor of "La Stampa" regarding the same photograph, published in the articles of June 3 and 6, 2022, considering that the articles were a lawful expression of the right to report on matters of public interest and that the publication [of the photograph n.d.r.] was equally "legitimate because the faces of the minors in question are not recognizable because pixelated";

HAVING REGARD TO the email of September 19, 2022, in which the complainant supplemented her grievances highlighting the significant distress experienced by her daughter, due to the circulation of the photos taken by the aforementioned journalist and emphasizing that:

- the journalist from whom the photograph was acquired by the author of the article in "La Stampa" allegedly presented herself "under false pretenses as a lawyer" for the mother of another girl involved in the incident, taking the shots not only without the consent of their parents but also through deception;
- photographs without any form of masking of the girls' faces would have circulated online, presumably provided by the aforementioned journalist who would have taken some shots before advising the girls to wear FFP2 masks;

HAVING REGARD TO the subsequent email of July 8, 2022, with which...

GEDI News Network S.p.a.) in modo illegittimo, né è stata scattata senza il consenso delle persone ritratte, in quanto il gruppo di adolescenti era in un contesto pubblico e non vi è stata alcuna violazione della privacy.

The claimant has specifically replied to the observations of GEDI News Network S.p.a., reiterating that:

- Contrary to what the Company claims, the daughter has, in fact, been recognized by several people: neighbors, relatives, friends, and, above all, classmates from the high school she attended; this is also due to a particular t-shirt, her favorite, that she often wore;
- The journalist took photos in various ways, even without a mask, acquiring them "illegitimately, through deception (in fact, she kept telling the victims: 'don't worry, I'm only taking pictures of your feet and nothing else, because anyway, by law, I can't take pictures of you!') without the consent of those exercising parental authority, and then sold them to other publications;
- No police act known to her supports the claim published in the article in question regarding the possibility that the minors could recognize their aggressors, and instead, this information further aggravated the prejudice suffered by her daughter and the other girls involved, endangering their safety "for purely sensationalistic and profit-driven purposes";

CONSIDERING the note from the Office dated February 7, 2023 (prot. n. 21184/23) with which, pursuant to Article 166, paragraph 5, of the Code, GEDI News Network S.p.a. was informed of the initiation of proceedings for the possible adoption of measures under Article 58, paragraph 2, of the Regulation concerning the alleged violation of Articles 5, paragraph 1, letter a), of the Regulation, Article 114, paragraph 6 of the Code of Criminal Procedure, Article 137, paragraph 3, of the Code, and Article 7 of the Ethical Rules;

HAVING SEEN the observations of March 9, 2023, with which the Company, represented by Attorney XX, recalling the arguments already presented in support of the legality of the contested treatment, stated that:

- "La Stampa," like many other media outlets, reported on an event that garnered particular attention (gathering/rave party and subsequent brawl that occurred on June 2, 2022, on the shores of Lake Garda and the serious case of violence and harassment of a racist and sexual nature suffered by a group of five/six adolescent girls aged between 16 and 17 years on the regional train Verona-Milan) not only for the "seriousness and social disvalue" of the event itself but also for the danger to which the girls and other passengers were exposed "without any form of control and protection being arranged by the competent authorities regarding an objectively dangerous situation in terms of public safety";

the newspaper therefore "provided a detailed account of that event, also drawing on the account that the girls themselves had given to Ansa and other media outlets (i.e., Il Giorno) immediately after the event, as well as also including the content of a post by one of the mothers of the girls involved in the case, posted on June 3, 2020, on a social network on the profile 'Milanobelladadio'";

- The author of the article indicated by the claimant then provided space for "necessary and essential news" related to the investigative activities, highlighting a matter of utmost interest to the community, namely the possibility for investigators to identify those responsible for both the vandalism after the gathering and the harassment on the train; this "hopefully precisely thanks to the testimonies given by the five adolescents to the Polfer in Milan";

- It does not reveal any element suitable to allow, even indirectly, the identification of the young girls (there are no names, no initials, no personal references to the family, school, or social life of the five/six girls who were victims of the aggression on the train), thus being perfectly compliant with the current legal provisions in this area;

- The photograph published alongside the article "merely depicts a group of adolescents sitting on an anonymous white bench, all dressed alike (jeans and white t-shirts), with the same haircut, their faces covered by anti-Covid masks, as well as by pixelation of the faces, making it impossible for anyone to identify the individuals depicted";

- As already anticipated by the Company in the memorandum of July 6, 2022, "the Disciplinary Board of the Order of Journalists of Lazio has already excluded that either the content of the article in question (including its typographical elements, and therefore also its title), or the contested photographic image present any profiles of illegality," as the treatment falls within an adequate balance between;

- That said, as already reported in the aforementioned memorandum of the Company, "on an exclusively voluntary basis and in order to avoid any exploitation of the case, it was deemed appropriate to: (i) remove the contested image, originally posted alongside the article by journalist Andrea Siravo, as well as to eliminate that photo from other platforms attributable to GNN S.p.A; (ii) de-index and thus disable access to the article signed by journalist Siravo for search engines";

- The ascertainment of any content not corresponding to the truth (including what is contained in the title of the article) and, therefore, allegedly defamatory – as it appears to be at the basis of the claimant's complaints – is a matter exclusively within the jurisdiction of the ordinary judicial authority;

- Contrary to what the claimant has asserted – based on a "completely fanciful and untrue reconstruction" – the photograph published by "La Stampa" was not acquired by journalist XX (who is not part of GEDI News Network S.p.a.) illegitimately, nor was it taken without the consent of the individuals depicted, as the group of adolescents was in a public context and there was no violation of privacy.

the testate of GEDI News Network and regarding its alleged "deceptive" conduct, the Company has no elements to express itself) but "was found online by the editorial staff of the newspaper La Stampa, lacking credit... and indeed published without references to copyright or other intellectual property rights, but with the caution of reinforcing the pixelation of the depicted faces";

CONSIDERING that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor";

CONSIDERING that the article in question must be related to the processing carried out in the exercise of freedom of expression and therefore Articles 136 - 139 of the Code and the ethical rules referred to in Article 139 of the same Code apply in their entirety;

NOTING that - as repeatedly asserted by the Authority - in order to balance the rights of the individual (in particular the right to privacy) with the freedom of expression, the regulation on the protection of personal data provides specific guarantees and precautions in the case of processing carried out in the context of freedom of expression, confirming their legality, even when they occur without the consent of the interested parties, provided that they take place in respect of the rights, fundamental freedoms,

and dignity of the individuals to whom the processed data refers (cf. Articles 136 et seq. and Article 102, paragraph 2, letter a), of the Code) and as long as they are carried out in compliance with the principle of "essentiality of information regarding facts of public interest" (Article 137, paragraph 3, of the Code and Article 6 of the Ethical Rules);

CONSIDERING that the respect for the aforementioned principle of essentiality of information must be interpreted with greater rigor in cases where the news concerns minors, whose superior interest must be considered prevailing, based on what can be inferred from the principles and limits established by the Treviso Charter referred to in Article 7 of the Ethical Rules;

CONSIDERING also that the protection of minors operates even more so when they are involved in news events as victims of criminal actions, in which their anonymity must be guaranteed, avoiding any informative element capable of allowing their identification, even indirectly (Article 114, paragraph 6 of the Code of Criminal Procedure; Article 7, paragraph 1 of the Ethical Rules);

NOTING that, although the news reported by the publication subject to complaint concerns a matter of particular public interest, receiving attention from a wide range of local and national press, the image accompanying it, as published in the article of June 6, 2022 indicated by the complainant, does not appear justified by specific informative needs and is to be considered excessive given that:

- it depicts minors in close-up, with only the pixelated part of their faces, leaving other elements - hair, physical structure, and clothing - widely visible, capable of making them identifiable, at least in their social environment;
- it is associated with acts of violence of which they have been victims;
- it documents their presence in a context that is entirely particular - the police offices - which is prejudicial to them;

ACKNOWLEDGING the removal measures adopted by the Company and that, therefore, regarding this aspect, there are no grounds for the Authority to adopt measures in this regard;

CONSIDERING that it cannot enter into the merits of the statements made by the complainant regarding alleged improper or "deceptive" conduct underlying the acquisition of the images subject to complaint, given the absence of any element proving such circumstance;

CONSIDERING on the other hand that - based on an independent and different assessment from that expressed in the resolution of June 21, 2022 by the Territorial Disciplinary Council of the Order of Journalists of Lazio - the publication of the aforementioned images, as attached to this complaint, constitutes a violation of Articles 137, paragraph 3, and 139 of the Code, Articles 6 and 7 of the Ethical Rules, as well as the general principles of legality and correctness of the processing of personal data referred to in Article 5, paragraph 1, letter a), of the Regulation, in light also of what is provided for in Article 114, paragraph 6 of the Code of Criminal Procedure;

CONSIDERING that compliance with the aforementioned Ethical Rules constitutes an essential condition for the legality and correctness of the processing of personal data (Article 2-quater of the Code);

THEREFORE, in accordance with Article 57, paragraph 1, letter f), of the Regulation, it is deemed necessary to evaluate the complaint as founded and consequently to order GEDI News Network S.p.a., pursuant to Article 58, paragraph 2, letter f), of the Regulation, the measure of prohibition of further processing, including online, including the historical archive, of the personal data of the minor in whose interest the complaint was submitted, to be extended to the data of the other minors depicted therein, except for mere preservation for possible use in judicial proceedings;

REMINDING that, in case of non-compliance with the measure of prohibition of processing ordered by the Guarantor, the criminal sanction referred to...

****To Article 170 of the Code, in addition to the administrative sanction referred to in Article 83, paragraph 5, letter e), of the Regulation;****

****CONSIDERED****, however, that it is necessary to adopt, with regard to the established violation, an

injunction order pursuant to Article 166, paragraph 7 of the Code and Article 18 of Law No. 689/1981 for the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5 of the Regulation;

****NOTED**** that, for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation and that, in this case, the following aggravating circumstances must be considered:

a) the seriousness of the violation (Article 83, paragraph 2, of the Regulation) and the harm suffered, taking into account the nature of the data processed, relating to minors in the context of an incident of violence perpetrated against them;

b) the existence of previous violations concerning the provisions related to journalistic activity, committed by the data controller since the entry into force of the Regulation (Article 83, paragraph 2, letter c);

and, as mitigating factors:

c) the purposes pursued by the data controller, related to the exercise of the right to report and freedom of information, as established by the Regulation (Article 85) and by the Code (Articles 136 et seq.);

d) the adoption of some, albeit limited, measures to protect the minors involved in the news events concerning the available images;

e) the initiatives taken to mitigate the reported harm, through the removal of the contested photograph from all platforms attributable to the Company and the disabling of access to the related article by search engines;

f) the cooperation shown during the proceedings (Article 83, paragraph 2, letter f), of the Regulation);

****NOTED**** that, based on the financial data of the Company, in this case, the maximum applicable penalty is equal to 20,000,000 euros (20 million);

****CONSIDERED**** that, based on the overall elements indicated above and the principles of effectiveness, proportionality, and deterrence indicated in Article 83, paragraph 1 of the Regulation, the pecuniary administrative sanction should be applied in the amount of 30,000.00 euros (thirty thousand), equal to 0.15% of the maximum penalty, against GEDI News Network S.p.a.;

****CONSIDERED**** that the prerequisites exist to proceed with the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, regarding the measures adopted in this case against GEDI News Network S.p.a. in accordance with Article 58, paragraph 2, of the same Regulation;

****VIEWED**** the documentation on file;

****VIEWED**** the observations made pursuant to Article 15 of the Regulation of the Guarantor No. 1/2000;

****REPORTER**** Attorney Guido Scorza;

****ALL OF THE ABOVE CONSIDERED, THE GUARANTOR****

pursuant to Article 57, paragraph 1, letter f), of the Regulation:

a) acknowledges the measures adopted by the data controller aimed at removing the contested image and preventing its further publication and therefore, regarding this aspect, believes that there are no grounds for the adoption of measures in this regard by the Authority;

b) pursuant to Article 58, paragraph 2, letter f) of the Regulation, orders the prohibition of further processing of the identified image concerning its further dissemination, including online, including the historical archive, except for mere preservation for potential use in judicial proceedings;

****ORDERS****

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, GEDI News Network S.p.a. Via Ernesto Lugaro 15, 10126 – Turin, VAT No. 01578251009, in the person of the representative pro tempore, to pay the sum of 30,000.00 euros (thirty thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to Article 166, paragraph 8 of the Code, has the option to settle the dispute by paying, within thirty days, an amount

equal to half of the imposed sanction;

****ORDERS****

GEDI News Network S.p.a., in the event of failure to settle the dispute pursuant to the aforementioned Article 166, paragraph 8, of the Code, to pay the sum of 30,000 euros (thirty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to Article 27 of Law No. 689/1981.

****DISPOSES****

pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, of the measures adopted against GEDI News Network, in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted, alternatively, to the court of the place where the data controller resides or has its registered office or to that of the place of residence of the interested party within thirty days from the date of communication of this provision or sixty days if the applicant resides abroad.

Rome, August 31, 2023

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Scorza

****THE SECRETARY GENERAL****

Mattei